
SERVICE AGREEMENT

Rooftop Unit, Glycol System and Refrigeration Support — 17 Union Street

This Service Agreement (the “Agreement”) is made as of **June 12, 2025** (the “Effective Date”) between **Mill River Mechanical Co. LLC**, a Massachusetts limited liability company of 112 Pleasant Street, Easthampton, Massachusetts 01027 (the “Contractor”), and **Braided River Brewing Co.**, of 17 Union Street, Easthampton, Massachusetts 01027 (the “Customer”).

1. Term

This Agreement begins on the Effective Date and continues for a rolling term of twelve (12) months, renewing automatically for successive twelve-month terms unless either Party gives the other written notice of non-renewal at least thirty (30) days before the end of the then-current term.

2. Scope of Services

2.1 Biweekly Checks. The Contractor shall perform maintenance checks on a **biweekly schedule on Fridays**, covering the equipment described in this Section. Each visit is logged on a written service ticket left with the Customer.

2.2 Rooftop Units. Scheduled maintenance of the rooftop units serving the taproom and production floor:

- Filter and belt replacement on the manufacturer's recommended interval, filters and belts included in the monthly fee.
- Coil cleaning, condensate drain and drain pan clearing, and economizer, damper and control operation checks.
- Refrigerant charge and superheat checks, and electrical connection inspection.

2.3 Glycol System. Scheduled maintenance of the glycol chilling and distribution system serving the fermentation and brite tanks:

- Glycol concentration and inhibitor testing at each visit, with top-up as needed; glycol supplied by the Customer or billed at cost plus 15%.
- Chiller operation check, condenser cleaning, and pump and circulator inspection.
- Inspection of insulated glycol lines, jacket solenoids and temperature controllers, and verification of tank temperature control against the Customer's setpoints.

2.4 Refrigeration Support — Production Side. Service and diagnostic support for the walk-in cooler and cold storage refrigeration serving the production area, including:

- Condenser and evaporator coil cleaning, defrost cycle verification, temperature and pressure checks, and door seal and drain line inspection.
- Priority scheduling of unscheduled service calls affecting product in process or in storage.

2.5 Response and Access. The Contractor shall respond to a Customer call affecting glycol cooling or production refrigeration within twenty-four (24) hours, and to all other calls within two (2) business days. The Customer shall provide roof and mechanical access during normal business hours and reasonable notice of brew schedules or taproom events that would interfere with a scheduled visit.

3. Major Equipment Replacement Not Covered

3.1 Replacement of major equipment is not covered by this Agreement and is not included in the monthly fee. Major equipment replacement includes, without limitation, **compressor replacement, full rooftop unit replacement,**

glycol chiller or condensing unit replacement, and replacement of the walk-in cooler refrigeration system. Work of that kind will be **quoted separately** and performed only after the Customer accepts the quote in writing.

3.2 Nothing in this Agreement obligates the Contractor to perform major equipment replacement, or the Customer to purchase it from the Contractor.

3.3 Also excluded are refrigerant line set replacement, electrical work beyond the equipment disconnect, roof and curb work, tank and vessel work, process piping other than glycol lines, and damage caused by fire, flood, freezing, power irregularity, vandalism or misuse.

4. Fees and Payment

4.1 The Customer shall pay the Contractor **\$1,650.00 per month** for the services described in Section 2, invoiced monthly. Payment terms are **Net 15** from the invoice date.

4.2 Work outside the scope of Section 2 is billed at the following rates:

Item	Rate
Labor — regular hours (Mon–Fri, 7:00 a.m. to 4:00 p.m.)	\$135.00 per hour
Labor — after hours, weekends and holidays	\$195.00 per hour
Parts, materials and glycol	Cost plus 15%

4.3 The Contractor will obtain the Customer's authorization before beginning out-of-scope work expected to exceed \$750. Balances unpaid more than thirty (30) days after the invoice date accrue a late charge of one and one-half percent (1.5%) per month.

5. Insurance and Indemnification

The Contractor shall maintain commercial general liability insurance of not less than \$2,000,000 per occurrence and in the aggregate, and workers' compensation insurance as required by Massachusetts statute, and shall furnish certificates on request. Each Party shall indemnify the other against claims for bodily injury, death or property damage to the extent caused by its own negligent acts or omissions. Neither Party is liable for consequential or indirect damages, including lost product or lost profits.

6. Termination and General

6.1 Either Party may terminate this Agreement for material breach on written notice if the breach is not cured within thirty (30) days. On termination the Customer shall pay for services performed through the termination date.

6.2 The Contractor performs this Agreement as an independent contractor and shall hold all licenses required by the Commonwealth of Massachusetts for the work performed. This Agreement is governed by Massachusetts law, may be amended only in writing signed by both Parties, and is the entire agreement on its subject matter.

The Parties have executed this Agreement as of the Effective Date written above.

CONTRACTOR — MILL RIVER MECHANICAL CO. LLC

CUSTOMER — BRAIDED RIVER BREWING CO.

Signature

Dana Mercier

Member

Date: June 12, 2025

Signature

Andre Sokol

Owner

Date: June 12, 2025